

- e) Issues underlying board's conclusions already raised in the decision under appeal – request not admitted

In T 1384/16 auxiliary request 17 was filed during the oral proceedings before the board. The appellant (patent proprietor) justified the late filing as a reaction to the board's conclusions that the invention claimed in the main request lacked sufficiency of disclosure and that auxiliary request 8 extended the scope of protection. However, in the board's view, these reasons did not justify such a late filing in the case in hand, as the underlying issues had already been raised in the decision under appeal and/or the communication issued by the board in preparation for the oral proceedings. The appellant should not have waited until there was an outcome on the different issues in the oral proceedings to decide on its line of defence and tailor the claims accordingly. Therefore, taking into account the stage of the appeal proceedings and the need for procedural economy, the board decided not to admit the request into the appeal proceedings (under Art. 13(1), 25 RPBA 2020, Art. 13(2) not yet being applicable).

- f) Request does not prima facie overcome objection – procedural economy – not admitted

In T 1187/15 the appellant (applicant) filed auxiliary request XI during the oral proceedings before the board. It was filed as a response to the board's conclusion, reached during the oral proceedings, that claim 1 of the requests on file did not comply with the requirements of Art. 123(2) EPC. In the exercise of its discretion under Art. 13(1) RPBA 2020 the board took into account, inter alia, whether the party had demonstrated that the amendments, prima facie, overcame the issues raised by the board and did not give rise to new objections. The board noted that this criterion was also a key one developed in the boards' case law on the exercise of their discretion under Art. 13(1) RPBA 2007 (Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.4.2). Art. 13 RPBA 2007 also applied in the case in hand (Art. 25(3) RPBA 2020). The board found that, prima facie, auxiliary request XI did not overcome the objections under Art. 123(2) EPC since the omission of certain features constituted an unallowable intermediate generalisation. In view of this and the fact that the appellant had had an opportunity to respond to the points raised by the board of its own motion, the board exercised its discretion not to admit auxiliary request XI into the proceedings. Moreover, the board rejected the appellant's request for another interruption to enable it to prepare another request to replace auxiliary request XI. It was not compatible with the principle of procedural economy that oral proceedings were conducted in such a way that the appellant was given the opportunity to repeatedly file new requests until a version of the claims was found that was acceptable to the board.

In T 1338/16 (in which, in accordance with Art. 25(3) RPBA 2020, Art. 13(2) RPBA 2020 did not yet apply to the submission filed in reply to the communication under Art. 15(1) RPBA 2007), the board considered, in view of the appellant's submissions, that the amendments made in the main request and auxiliary requests 1 to 3 were primarily directed to overcoming objections in relation to added subject-matter, clarity and support, but prima facie did not overcome its objections to patentability under Art. 54 and 56 EPC. Consequently, the board exercised its discretion under Art. 13(1) RPBA 2020 not to admit these requests into the proceedings.

In **T.700/15** too, the board concluded (with regard to requests 1', 1'0, 1'a, etc.) that the appellant (patent proprietor) had not, as required under Art. 13(1) RPBA 2020, demonstrated that the amendment in the auxiliary requests prima facie overcame the issues raised by the board. More decisions on the duty to provide reasons showing that an amendment overcomes the objections raised are reported in chapter V.A.4.4.4c) "Substantiation of amendments to patent application or patent".

g) Claim amendments prima facie give rise to new objections – requests not admitted

In **T.700/15** the board had doubts about whether claim 1 of each the auxiliary requests at issue (0, 1₀, 1a₀, etc.) was compatible with Art. 123(2) and 84 EPC. The claim contained a feature related to the result envisaged in the application. Finding that, in any event, the amendments made in claim 1 of each of the auxiliary requests gave rise prima facie to new objections, the board exercised its discretion under Art. 13(1) RPBA 2020 not to admit the auxiliary requests.

The board in **T.136/16** likewise exercised its discretion not to admit two auxiliary requests, in particular because the amendment in auxiliary request 1 gave rise prima facie to a new objection under Art. 84 EPC. It also considered that the amendment could and should have been made at an earlier stage in the proceedings.

h) Inclusion of possibly unsearched features – procedural economy – request not admitted

In ex parte case **T.786/16** the request at issue was filed at a late stage of the oral proceedings before the board. Possibly unsearched features were added from the description, along with expressions which were not literally disclosed in the application as filed. The addition of the unsearched features further meant that the claim now included three alternatives, each requiring separate examination. The board noted that either an extensive examination of the new features with respect to compliance with Art. 83, 84, 123(2), 54 and 56 EPC would have had to be undertaken at the oral proceedings before the board or the case would have had to be remitted to the examining division for further examination. In the board's view, neither of these steps would have been consistent with the need for procedural economy, even less so considering the primary purpose of appeal proceedings (Art. 12(2) RPBA 2020).

i) Claim requests becoming non-convergent by later submission of further requests – not admitted

In **T.2112/16** the appellant (proprietor) filed auxiliary requests 1 to 14 with the grounds of appeal, and later, but before the notification of the summons to oral proceedings, new auxiliary requests 1A and 4. The board exercised its discretion under Art. 13(1) RPBA 2020 not to admit auxiliary requests 1A and 4 into the proceedings. On auxiliary requests 2, 3 and 5 to 14, the board held that the sequence of the auxiliary requests had been changed during the course of the appeal proceedings due to the introduction of auxiliary request 1A, and this involved a material change in the focus of the claimed invention. The board took the view that the selected sequence of the auxiliary requests led

to an evident broadening and lack of convergence in the requests. Such a change made after a party had presented its complete case did not meet the requirement for procedural economy set out in Art. 13(1) RPBA 2020. The board exercised its discretion under Art. 13(1) RPBA 2020 not to admit the auxiliary requests 2, 3 and 5 to 14 into the proceedings.

Likewise in T 1185/17 auxiliary requests 3 to 6, which had been filed with the grounds of appeal as auxiliary requests 4 to 7, were not admitted into the proceedings due to a new lack of convergence caused by the later filing of auxiliary requests 1 and 2. The latter were not taken into account pursuant to Art. 13(2) RPBA 2020.

j) Filing of reply to the appeal shortly after expiry of non-extended period – admitted

In T 2638/16, the patent proprietor had filed its reply to the grounds of appeal late (shortly after expiry of the period prescribed in Art. 12(1)(c) RPBA 2020), its request for an extension having been refused. The board observed that the purpose of Art. 12 RPBA 2020 was to oblige the parties to present a complete case at the outset of the proceedings in order to ensure the board had an appeal file containing comprehensive submissions from each party and to prevent tactical abuses of procedure. Exercising its discretion under Art. 13(1) RPBA 2020, the board took into account that the reply had been received immediately after notification of the refusal of the request for an extension and so at a still early stage in the proceedings and that the belated filing had not prevented it from considering the complete cases of all the parties. It could see no indication that the late filing had been a tactical abuse of procedure or impaired procedural economy. It thus took the reply, and a document filed with it, into account under Art. 13(1) RPBA 2020.

4.4.6 Discretion under Article 13(1) RPBA 2020 – new facts, objections, arguments and evidence

a) New documents filed in response to experimental data submitted by the patent proprietor – admitted

In T 23/17 (see also abstract in chapter V.A.4.4.4b)) the board exercised its discretion under Art. 13(1) RPBA 2020 and held plausible and understandable the argument made by the appellant (opponent) that the new documents (filed after the statement of grounds of appeal but before the notification of the summons to oral proceedings) had been filed in response to the experimental data presented by the respondent (patent proprietor) in its reply to the appeal and so, as Art. 13(1) RPBA 2020, put it, "to resolve the issues which were admissibly raised by another party in the appeal proceedings". The board could not see that there had been any reason to file these documents at an earlier stage of the proceedings.

In T 446/16 too, the appellant (opponent) had filed experimental report D35 after its grounds of appeal but before the summons with a view to rebutting the experimental results in D33, which the respondent (patent proprietor) had filed with its reply. The board accepted the reasoning that this response to D33 could not have been filed earlier, finding

that the appellant could not be denied an opportunity to cast doubt on the results in D33 in this way.

However, see also T.2688/16 for an example of a case in which a board refused to admit experimental results owing to a lack of adequate reasons for their late filing (see chapter V.A.4.4.4b)).

b) No new complexity introduced – objection admitted

In T.310/18 the appellant (opponent) raised an objection regarding lack of inventive step starting from D2 in view of D15 for the first time about a month before the oral proceedings. However, since an attack starting from D15 in view of D2 had already been dealt with in the decision under appeal, the relevant technical content of these documents had been discussed extensively during the earlier stages of the appeal proceedings. The board considered that starting from D2 instead of D15 did not introduce any complex matters but merely relied on a combination of the previously discussed features. The respondent and the board were thus able to deal with the objection during the oral proceedings. Under these circumstances the board decided to admit the objection into the proceedings (Art. 13 RPBA 2007, Art. 13(1) and (3) and 25(3) RPBA 2020; Art. 13(2) RPBA 2020 not yet being applicable). However, see also T.140/15, summarised in chapter V.A.4.4.6i), where a new objection based on the same combination of documents but starting from a different closest prior art was not admitted.

c) New lines of attack based on documents submitted during first-instance proceedings – not admitted

In T.256/17 the board had to decide whether to admit two new lines of attack submitted against claim 1 of the patent on the basis of a lack of inventive step which the appellant (opponent) had filed in response to the respondent's reply. Both lines of attack were based on documents submitted during the first-instance proceedings, but one of them combined for the first time two documents previously discussed as the closest prior art and the other, starting from a known combination, argued on the basis of a different technical problem. The appellant gave no reasons for first raising these objections after having filed the statement of grounds of appeal, and the board could no reason for this either. It pointed out that, by acting this way, the appellant had prevented the respondent from reacting to the attack during the opposition proceedings and the opposition division from deciding on the matter. With the late submission the appellant had confronted the board and the respondent with a fresh case, which was contrary to the very aim of appeal proceedings, which was to review the decision under appeal in a judicial manner (see Art. 12(2) RPBA 2020). The board thus decided to exercise its discretion not to admit the new lines of attack under Art. 12(4) RPBA 2007 in conjunction with Art. 12(2) RPBA 2007 (essentially corresponding to Art. 12(3) RPBA 2020) and Art. 25(2) RPBA 2020 and under Art. 13(1) RPBA 2020 in conjunction with Art. 25(1) RPBA 2020).

d) Relevance of new lines of attack for assessment of patentability – not a sufficient justification

In T.1203/16 the appellant (opponent) submitted, in reply to the preliminary opinion of the board, a new objection of insufficiency of disclosure and a new line of attack against novelty and inventive step of the subject-matter of claim 1 of the patent as granted, based on a document considered in opposition. In addition, five days before the oral proceedings the appellant filed a new document and argued against novelty of the subject-matter of granted claim 1. As justification for these late amendments to its case, the appellant (opponent) merely argued that the new lines of attack were relevant for assessing the patentability of the opposed patent and avoiding maintenance of a patent not fulfilling the necessary requirements of the EPC. The board emphasised that such a justification was not sufficient, as this would always be the case in opposition proceedings from the point of view of the opponent. These new lines of attack could and should have been filed before. Furthermore, the board held that waiting until receiving the preliminary opinion of the board pursuant to Art. 15(1) RPBA 2007, before submitting further evidence and lines of attack was totally contrary to a leading principle of the Rules of Procedure, namely that on appeal the case of the parties should be complete at a very early stage. Moreover, the necessary adjournment, should the new document be admitted, would be contrary to Art. 15(6) RPBA 2020. The board therefore decided in exercise of its discretion not to admit the new lines of attack and the corresponding document into the proceedings pursuant to Art. 12(4) RPBA 2007, Art. 13(1) RPBA 2020 and Art. 13(1) and (3) RPBA 2007.

e) New documents not prima facie relevant – not admitted

As observed in T.731/16 (citing Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.13.2), it was the boards' established case law that, besides a reason objectively justifying an amendment to a case, a decisive criterion for admitting late-filed documents was their prima facie relevance. Such material needed to be prima facie highly relevant in the sense that it could reasonably be expected to change the outcome of the proceedings, i. e. that it was highly likely to prejudice maintenance of the European patent. In the case in hand, citation D12 had only been filed in response to the board's communication under Art. 15(1) RPBA 2007. In the board's view, it was out of the question that it would have been self-evident for the skilled person to combine the teaching of D4, a citation already on file, with that of newly filed D12. It therefore held that D12 was not highly relevant prior art and refused to admit it.

In T.2796/17 prima facie relevance was one of several factors (besides the timing of submission and the complexity of the new facts) the board considered in exercising its discretion under Art. 13(1) in conjunction with 25(1) RPBA 2020 and Art. 13 RPBA 2007 in conjunction with Art. 25(3) RPBA 2020. The board found that the new submission (an inventive-step objection to the subject-matter according to claim 1, based on a combination of two documents filed with the notice of opposition) was not prima facie relevant, because the appellant (opponent) had not substantiated why the skilled person starting from the asserted closest prior art would have consulted the second document (without hindsight) or how that document disclosed the features added to the new main request. Not only had the appellant, without providing any justification, raised the objection